

Court No. - 2

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Kumar Dixit,J.

As prayed by Smt.M. Tripathi, learned Counsel, put up this case on Monday i.e. 9.8.2010 to enable her to obtain instructions or to file counter affidavit.

Order Date :- 4.8.2010

sks

Court No. - 2

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

A request has been made on behalf of Mr. Mridul Tripathi, learned counsel appearing for the respondents for the adjournment of the matter.

Put up this matter on 11.8.2010.

Order Date :- 9.8.2010

SKM

Court No. - 2

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Counter affidavit filed today by respondent no. 4 is taken on record.

Put up on 18th August, 2010 by which time the rejoinder affidavit be filed.

Order Date :- 11.8.2010

RK/-

Court No. - 35

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Amreshwar Pratap Sahi,J.

As prayed, put up on 26.08.2010.

Order Date :- 23.8.2010

Akv

Court No. - 35

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla
And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Kumar Dixit,J.

As prayed, put up tomorrow, i.e., 27.8.2010.

Order Date :- 26.8.2010

Ram Murti

Court No. - 35

Case :- WRIT - C No. - 45578 of 2010

Petitioner :- S. R. Traders Thru' Its Proprietor Smt. Amita Shukla And Anr

Respondent :- Kanpur Electricity Supply Company And Another

Petitioner Counsel :- Saurabh Srivastava

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Kumar Dixit,J.

Heard learned counsel for the petitioners and Smt. Mridul Tripathi, Advocate for respondents nos. 1 and 2.

By this writ petition, the petitioners have prayed for issue an order or direction in the nature of certiorari quashing the checking report dated 11.05.2010 and further mandamus directing the respondent to restore forthwith the petitioner's Electricity Connection No.26/25714 at the premises 534, Mona Nagar, Jajmau, Kanpur.

Learned counsel for the petitioners submits that in the same premises both the petitioners' electric connections as well as connection of petitioner's husband are running which has been disconnected on 11.05.2010. Learned counsel for the petitioner submits that it is permissible to give two connections in one premises in accordance with the provision of U.P. Electricity Supply Code, 2005.

We have considered the submissions of the learned counsel for the parties and have perused the record.

In so far the prayer of the quashing of the inspection report is concerned we see no ground to quash the inspection report. The provisions in the U.P. Electricity Supply Code, para 4.15 indicate that it is the discretion of the authority concern to permit more than one connections in one premises. Ends of justice served in giving liberty to the petitioners to represent the matter to the respondent no.2, Executive Engineer, Electricity Urban Distribution Division, Jajmau, KESCO, Kanpur Nagar with regard to continuing the connection in favour of the petitioners. Authority concern to consider and take appropriate decision on the representation he considered in accordance with law, if so moved.

With these observations, this petition is finally disposed of with a direction to the respondent no.2, Executive Engineer, Electricity Urban Distribution Division, Jajmau, KESCO, Kanpur Nagar to decide the representation of the petitioner, if so moved within four weeks from the date a certified copy of the order is produced before it.

Order Date :- 27.8.2010

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